

United States Of America Conditions Clause

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Any claim made or legal proceedings made within the United States of America and/or territories which come under the jurisdiction of the United States of America including the enforcement by courts of any other country of any judgement originally obtained in any court of the United States of America and/or territories which come under the jurisdiction of the United States of America shall be subject to the following Conditions and Exclusions:-

Conditions

(i) The maximum amount payable in respect of all claims made under this policy shall not exceed in the aggregate the sum insured specified in the schedule.

(ii) Any costs and expenses incurred during the investigation, defence and settlements shall be included with the annual aggregate limit and deductible as specified in the schedule.

Exclusions

This Policy shall not apply to:-

(i) any punitive and/or exemplary damages awarded against the Insured

(ii) claims based upon the Employment Retirement Income Security Act of 1974 and any amendment thereto, or any rules or regulations promulgated thereunder.

(iii) claims arising out of seepage, pollution and/or contamination howsoever caused.

(iv) Claims arising from the performance or non-performance by the Insured or any director or Officer of the Insured of any duties in the capacity of duly elected Director or Officer of any company or entity